

**SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ANGELA OWENS, as Administrator of the Estate of
JAMES OWENS and ANGELA OWENS, individually,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
PATRICK GOURLAY and POLICE OFFICER KURT
FITZCHARLES,

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER PATRICK GOURLAY
c/o New York City Police Department- 69th
Precinct
9720 Foster Avenue
Brooklyn, New York 11236

POLICE OFFICER KURT FITZCHARLES
c/o New York City Police Department- 69th
Precinct
9720 Foster Avenue
Brooklyn, New York 11236

Dated: Brooklyn, New York
August 3, 2018

Index #
Date of filing:

Plaintiff, ANGELA OWENS,
designates Kings County
as the place of trial

Basis of the venue is the Locus
of Occurrence

SUMMONS

Plaintiff, ANGELA OWENS,
resides at
75 Wilson Street, Apt# 20C
Brooklyn, New York 11249

County of Kings

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

**SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS**

-----X
ANGELA OWENS, as Administrator of the Estate of
JAMES OWENS and ANGELA OWENS, individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
PATRICK GOURLAY and POLICE OFFICER KURT
FITZCHARLES,

Defendants.

-----X

The plaintiff, ANGELA OWENS, by her attorneys, RUBENSTEIN & RYNECKI, ESQS.,
complaining of the defendants herein, upon information and belief, respectfully shows to this Court,
and alleges as follows:

THE PARTIES AND FACTUAL ALLEGATIONS

1. That at the time of his death on January 3, 2017, and at all times hereinafter
mentioned, plaintiff decedent, JAMES OWENS , was a resident of the County of Kings, City and
State of New York.

2. The plaintiff, ANGELA OWENS, was the Daughter of the decedent, JAMES
OWENS, and a resident of the County of Kings, City and State of New York.

3. That prior to the commencement of this action, ANGELA OWENS, was appointed
as the administrator for the Estate of JAMES OWENS , decedent, by Order of the Honorable
Margarita Lopez Torres, Judge of the Kings County Surrogate's Court dated May 11, 2018.

4. The cause of action herein alleged arose in the County of Kings, City and State
of New York.

5. That the defendant, THE CITY OF NEW YORK, at all times hereinafter mentioned
was a municipal corporation duly organized and existing by virtue of the laws of the State of New
York.

6. That the defendant THE CITY OF NEW YORK maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

7. That prior hereto on May 18, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

8. Pursuant to the General Municipal Law, the Statutory 50-H hearing of the plaintiff, ANGELA OWENS, is currently scheduled August 6, 2018.

9. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE OFFICER PATRICK GOURLAY, as an agent, servant and/or employee.

10. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE OFFICER KURT FITZCHARLES, as an agent, servant and/or employee.

11. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

12. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, decedent, JAMES OWENS, was lawfully present inside the premises known as 967 99th Street, in the County of Kings, City and State of New York.

13. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, a telephone call was placed to the 911 system of the City of New York, regarding an emotionally disturbed individual at 967 99th Street, in the County of Kings, City and State of New York.

14. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, a telephone call was received by the 911 emergency system of the City of New York, requesting assistance at 967 99th Street, in the County of Kings, City and State of New York, relating to an emotionally disturbed individual.

15. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the City of New York, employed a specifically trained unit of the New York City Police Department, known as the Emergency Services Unit.

16. That on January 3, 2017, and for sometime prior thereto, the emergency services unit of the New York City Police Department, were trained to handle situations relating to emotionally disturbed individuals.

17. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER PATRICK GOURLAY and POLICE OFFICER KURT FITZCHARLES, were not assigned to the emergency services unit of the New York City Police Department.

18. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER PATRICK GOURLAY, was not trained with proper techniques when responding to a request for assistance in situations dealing with an emotionally disturbed individual.

19. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER KURT FITZCHARLES, was not trained with proper techniques when responding to a request for assistance in situations dealing with an emotionally disturbed individual.

20. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER PATRICK GOURLAY and POLICE OFFICER KURT FITZCHARLES, were dispatched to and arrived at the aforementioned premises to respond to the call requesting assistance relating to an emotionally disturbed person.

21. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER PATRICK GOURLAY and POLICE OFFICER KURT FITZCHARLES, were not properly trained to provide assistance and/or respond to calls requiring assistance relating to emotionally disturbed individuals.

22. Thereafter, on January 3, 2017 the decedent plaintiff JAMES OWENS, was fatally shot three (3) times by the defendant, POLICE OFFICER PATRICK GOURLAY, while acting within the scope of his employment with the defendant, THE CITY OF NEW YORK.

23. The aforementioned shooting of the decedent plaintiff JAMES OWENS, was performed without reason or provocation.

24. The aforementioned shooting on the decedent plaintiff, JAMES OWENS, was performed without probable cause.

25. The aforementioned shooting on the decedent plaintiff, JAMES OWENS, was performed knowingly, intentionally and willfully.

26. The aforementioned shooting on the decedent plaintiff, JAMES OWENS, was performed negligently and recklessly.

27. The aforementioned discharge of a firearm and/or service weapon resulted in the death of the decedent plaintiff, JAMES OWENS.

28. The discharge of the firearm and/or service weapon by the defendant, POLICE OFFICER PATRICK GOURLAY, was outside the scope of tactics and/or actions that a reasonably prudent and properly trained police officer should have used under the circumstances.

29. At no time during the events described above or as the events occurred did the defendant, POLICE OFFICER PATRICK GOURLAY, have probable cause to use and discharge his firearm and/or service weapon upon the decedent plaintiff, JAMES OWENS.

30. At no time during the events described above or as the events occurred did the defendant, POLICE OFFICER PATRICK GOURLAY, had no legal justification to use and discharge of a firearm and/or service weapon upon the decedent plaintiff, JAMES OWENS.

31. The actions of defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, are liable under the doctrine of respondeat superior.

32. The actions of the defendants, defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, is responsible for and the events occurred in a negligent, careless and reckless manner so as to result in the death of the decedent plaintiff, JAMES OWENS.

33. By reason of said use of a firearm and/or service weapon, the decedent plaintiff, JAMES OWENS, was caused to suffer severe physical injuries and pain and suffering including pre-death pain and suffering; emotional and psychological distress and horror as a result of the negligence of the defendants herein.

**AS AND FOR A FIRST CAUSE OF ACTION FOR FOR ASSAULT
AND BATTERY ON BEHALF OF ANGELA OWENS, AS
ADMINISTRATOR OF THE ESTATE OF JAMES OWENS**

34. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "33" herein, as though more fully set forth herein at length.

35. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the plaintiff, decedent, JAMES OWENS, was lawfully present inside the premises known as 967 East 99th Street, County of Kings, City and State of New York.

36. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, responded to call made by the decedent's sister requesting assistance with an emotionally disturbed individual, the decedent plaintiff, JAMES OWENS.

37. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, arrived at the aforementioned premises responding to the 911 call of the decedent's sister requesting assistance with the decedent plaintiff, JAMES OWENS, an emotionally disturbed individual.

38. While at the aforementioned premises, the defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, did not act as reasonably prudent and properly trained police officers should have under the circumstances they were confronted with.

39. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, confronted the decedent plaintiff, JAMES OWENS, an emotionally disturbed individual.

40. That the defendant, POLICE OFFICER KURT FITZCHARLES, armed with a stun gun and/or other conductive energy device discharged his device striking the decedent plaintiff, JAMES OWENS, while acting within the scope of his employment with the defendant, THE CITY OF NEW YORK.

41. The decedent plaintiff, JAMES OWENS, was thereafter shot approximately three (3) times with a firearm and/or service weapon discharged by the defendant, POLICE OFFICER PATRICK GOURLAY, which resulted in the death of the decedent plaintiff, JAMES OWENS.

42. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the discharge of a stun gun and/or other conductive energy device by POLICE OFFICER KURT FITZCHARLES, upon the decedent plaintiff, JAMES OWENS, was performed knowingly, intentionally and willingly.

43. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the shooting with a firearm and/or service weapon by the defendant, POLICE OFFICER PATRICK GOURLAY, upon the decedent plaintiff, JAMES OWENS, was performed knowingly, intentionally and willingly.

44. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, who committed the aforementioned assault, battery, discharge of a stun gun and/or other conductive energy device and discharge of a firearm and/or service weapon upon the decedent plaintiff, JAMES OWENS, which resulted in his death, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

45. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the assault, battery, discharge of a stun gun and/or other conductive energy device and discharge of a firearm and/or service weapon upon the decedent plaintiff, JAMES OWENS, was without probable cause.

46. By reason of said assault, battery, discharge of a stun gun and/or other conductive energy device and discharge of a firearm and/or service weapon upon the decedent plaintiff, JAMES OWENS, was caused to suffer severe physical injuries and pain and suffering including pre-death pain and suffering; emotional and psychological distress and horror as a result of the negligence of the defendants herein.

47. That the actions of the defendants were not in conformity with how a reasonably prudent and properly trained police officer should have acted under the circumstances.

48. By reason of the foregoing, the plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, demands judgment for assault and battery against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR WRONGFUL
DEATH ON BEHALF OF ANGELA OWENS, AS
ADMINISTRATOR OF THE ESTATE OF JAMES OWENS**

49. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "48" herein, as though more fully set forth herein at length.

50. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, JAMES OWENS, was lawfully at the aforesaid location when he was assaulted, battered and struck by a stun gun and/or other conductive energy device and shot approximately three (3) times which resulted in his death by defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, while acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

51. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, JAMES OWENS, was lawfully at the aforesaid location when he was shot approximately three (3) times which resulted in his death by defendant, POLICE OFFICER PATRICK GOURLAY, while acting within the scope of his employment with the defendant, THE CITY OF NEW YORK.

52. That the use of a stun gun and/or other conductive energy on the decedent plaintiff, JAMES OWENS, was without reason or provocation.

53. That the use of a stun gun and/or other conductive energy on the decedent plaintiff, JAMES OWENS, was without probable cause.

54. The aforementioned use of a stun gun and/or other conductive energy on the decedent plaintiff, JAMES OWENS, was performed knowingly, intentionally and willfully.

55. The aforementioned use of a stun gun and/or other conductive energy on the decedent plaintiff, JAMES OWENS, was performed negligently and recklessly.

56. The aforementioned shooting of the decedent plaintiff, JAMES OWENS, was performed without reason or provocation.

57. The aforementioned shooting of the decedent plaintiff, JAMES OWENS, was performed without probable cause.

58. The aforementioned shooting of the decedent plaintiff, JAMES OWENS, was performed knowingly, intentionally and willfully.

59. The aforementioned shooting of the decedent plaintiff, JAMES OWENS, was performed negligently and recklessly.

60. The aforementioned assault, battery, discharge of a stun gun and/or other conductive energy and discharge of a firearm and/or service weapon resulted in the death of the decedent plaintiff, JAMES OWENS.

61. That at all times hereinafter mentioned, defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, engaged in the actions and conduct alleged herein in their official capacity as New York City Police Officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

62. That the aforementioned wrongful death of the decedent plaintiff, JAMES OWENS, was caused due to the negligence, carelessness and recklessness of the defendants in actions they engaged in while employed as police officers and responding to a call requiring assistance with an emotionally disturbed individual.

63. That the aforementioned wrongful death of the the decedent plaintiff, JAMES OWENS, was caused by the defendant, THE CITY OF NEW YORK, in allowing or causing improperly trained police officers to respond to a call relating to an emotionally disturbed individual, for which the defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, were not properly trained to respond.

64. By reason of the foregoing, the plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, demands judgment for wrongful death against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENCE
ON BEHALF OF ANGELA OWENS, AS ADMINISTRATOR
OF THE ESTATE OF JAMES OWENS**

65. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as

“1” through “64” herein, as though more fully set forth herein at length.

66. That said incident and the injuries and death of the decedent plaintiff, JAMES OWENS, as a result of the use of a stun gun and/or other conductive energy and discharge of a firearm upon the decedent plaintiff, JAMES OWENS, was caused solely by the negligence, carelessness, and recklessness of defendant, THE CITY OF NEW YORK, through its agents, servants, employees and the police officers involved, including but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, both directly and vicariously.

67. That on January 3, 2017 and for sometime prior to the City of New York and the New York City Police Department, had in place procedures and protocol to be used and followed when the 911 call system received a telephone call requesting assistance with an emotionally disturbed person.

68. That on January 3, 2017, the City of New York and the New York City Police Department, received a call requesting assistance at 967 East 99th Street, County of Kings, City and State of New York, relating to an emotionally disturbed person.

69. That on January 3, 2017, the City of New York and/or the New York City Police Department, were under a duty to follow the proper procedures and protocol then in place relating to and responding to a request for assistance relating to an emotionally disturbed person.

70. That on January 3, 2017, the defendants were negligent, reckless and careless relating to their response to a request seeking assistance for an emotionally disturbed person at 967 East 99th Street, County of Kings, City and State of New York.

71. Such negligence consisted of failing to have properly trained police officers respond to a call requesting assistance for an emotionally disturbed individual; failing to properly and timely dispatch members of the Emergency Services Unit of the New York City Police Department to the call requesting assistance at 967 East 99th Street, with an emotionally disturbed individual; failing to follow proper guidelines, procedures and protocol in responding to a request for assistance with an emotionally disturbed individual; such negligence consisted of negligence in training, hiring,

supervision and retention of the police officers involved in this incident; in failing to properly train police officers, including but not limited to POLICE OFFICER PATRICK GOURLAY, in the use and the discharge of a firearm and/or service weapon; in failing to observe the existing police department protocols for police officers designed to govern the use of deadly lethal force and the use of a firearm and/or service weapon causing serious injuries both physical and emotional resulting in death, conscious pain and suffering, pre impact terror arising and resulting from the use of a firearm and/or service weapon on the plaintiff and further; in failing to use care in the performance of police duties as reasonably prudent and careful police officers would have used in similar circumstances; in hiring and retaining persons who were unfit to serve as police officers; failing to properly investigate their background; in failing to train and instruct police officers, especially regarding the use and abuse of power while in the field; in failing to give police officers proper instructions on the use of force, use of a firearm and/or service weapon including improper discharge of said weapon, more specifically with regard to their training as to the use of a firearm and/or service weapon in public; improperly supervised police officers in the field; failing to properly supervise the officers in the field, including the officers, the staff, administration and processing of persons suspected of violating laws of this State which allowed the death of the decedent plaintiff, JAMES OWENS.

72. Such negligence consisted of failing to have properly trained police officers respond to a call requesting assistance for an emotionally disturbed individual; failing to properly and timely dispatch members of the Emergency Services Unit of the New York City Police Department to the call requesting assistance at 967 East 99th Street, with an emotionally disturbed individual; failing to follow proper guidelines, procedures and protocol in responding to a request for assistance with an emotionally disturbed individual and further; such negligence consisted of negligence in training, hiring, supervision and retention of the police officers involved in this incident; in failing to properly train police officers, including but not limited to POLICE OFFICER KURT FITZCHARLES, in the use and operation of a stun gun and/or other conductive energy; in failing to observe the existing police department protocols for police officers designed to govern the use

of deadly lethal force and the use and discharge of a stun gun and/or other conductive energy causing serious injuries both physical and emotional resulting in death, conscious pain and suffering, pre impact terror arising and resulting from the use of a stun gun and/or other conductive energy on the plaintiff and further; in failing to use care in the performance of police duties as reasonably prudent and careful police officers would have used in similar circumstances; in hiring and retaining persons who were unfit to serve as police officers; failing to properly investigate their background; in failing to train and instruct police officers, especially regarding the use and abuse of power while in the field; in failing to give police officers proper instructions on the use of force, use of a stun gun and/or other conductive energy including proper discharge of said weapons, more specifically with regard to their training as to the use of a stun gun and/or other conductive energy in public; improperly supervised police officers in the field; failing to properly supervise the officers in the field, including the officers, the staff, administration and processing of persons suspected of violating laws of this State which allowed the death of the decedent plaintiff, JAMES OWENS.

73. Such negligence consisted of negligence in the training, hiring, supervision and retention of the police officers involved in this incident; in failing to properly train police officers, including but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, with regards to proper conduct and responses under a variety of situations, including but not limited to handling situations involving emotionally disturbed persons; in failing to properly supervise officers in the field, including but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, relating specifically to the decedent plaintiff, JAMES OWENS, resulting in his death after he was assaulted, battered, shot with a stun gun and/or other conductive energy and shot with a firearm and/or service weapon by the defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY; in failing to implement and allow the appropriate system for dispatching officers, including the officers herein, to handle situations involving emotionally disturbed persons, specifically decedent plaintiff, JAMES OWENS, who was assaulted, battered, struck by stun gun

and/or other conductive energy and shot with a firearm and/or service weapon which ultimately led to his death.

74. The defendant, THE CITY OF NEW YORK, through its agents, servants, employees and the police officers involved, including but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, were negligent, reckless and careless in their department of their duties as police officers in dealing with the decedent plaintiff, JAMES OWENS, an emotionally disturbed individual.

75. As the result of said negligence, the decedent plaintiff, JAMES OWENS, was caused to suffer severe physical injuries and pain resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror.

76. By reason of the foregoing, the plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, demands judgment for negligence against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING,
TRAINING AND AND RETENTION ON BEHALF OF ANGELA OWENS, AS
ADMINISTRATOR OF THE ESTATE OF JAMES OWENS**

77. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "76" herein, as though more fully set forth herein at length.

78. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, who assaulted, battered and improperly used a taser and/or other conductive energy device and discharged a firearm and/or

service weapon upon the decedent plaintiff, JAMES OWENS, who suffered injuries which ultimately led to his death.

79. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, who failed to act as reasonably prudent police officers would have under the circumstances when dealing with a emotionally disturbed individual, the decedent plaintiff, JAMES OWENS, who suffered injuries which ultimately resulted in his death.

80. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct and training of the defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, whose names are not known or identified, and continued to employ them and allowed them to be in contact with the public at large and more specifically allowed them to respond to the calls related to an emotional disturbed individual.

81. By reason of the foregoing, the plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, demands judgment for negligent hiring and retention against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL RIGHTS
VIOLATION ON BEHALF OF ANGELA OWENS, AS
ADMINISTRATOR OF THE ESTATE OF JAMES OWENS**

82. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "81" herein, as though more fully set forth herein at length.

83. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, through policies, practices and customs, directly caused the constitutional violations suffered by decedent plaintiff, JAMES OWENS.

84. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

85. That the defendant, THE CITY OF NEW YORK, has failed to properly train and supervise the police officers in dealing with emotionally disturbed individuals, despite having been placed on notice of the need to do so and their failure to complete proper training.

86. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, were aware that these individual defendants routinely committed constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

87. That on January 3, 2017, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, was aware that their police officers were not properly trained to deal with emotionally disturbed individuals yet continued to assign and permit these officers to respond to a situation involving an emotionally disturbed individual and violated the constitutional rights of the decedent plaintiff, JAMES OWENS.

88. By reason of the foregoing, the plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, demands judgment for civil rights violation against the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES AS TO
DEFENDANTS, POLICE OFFICER KURT FITZCHARLES AND POLICE OFFICER
PATRICK GOURLAY, ON BEHALF OF ANGELA OWENS,
AS ADMINISTRATOR OF THE ESTATE OF JAMES OWENS**

89. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "88" herein, as though more fully set forth herein at length.

90. The actions of the defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, herein-above alleged, were malicious, willful and grossly negligent.

91. The defendants, POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, committed the unlawful and negligent acts herein-above alleged, after the use a taser and/or other conductive energy device and discharge a firearm and/or service weapon on the decedent plaintiff, JAMES OWENS, which ultimately led to his death.

92. By reason of the foregoing, the plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, demands judgment for punitive damages against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR LOSS
OF SERVICES ON BEHALF OF DULCINA JEUNE, AS
ADMINISTRATOR OF THE ESTATE OF DWAYNE RANDY JEUNE**

93. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "92" herein, as though more fully set forth herein at length.

94. That at all times hereinafter mentioned, the plaintiff, ANGELA OWENS, was the daughter of the decedent plaintiff, JAMES OWENS, and as such plaintiff, ANGELA OWENS, was entitled to the society and services of the decedent plaintiff, JAMES OWENS.

95. By reason of the aforementioned negligence of the defendants, the plaintiff, ANGELA OWENS, was deprived of the society and services of the decedent plaintiff, JAMES OWENS, and shall forever be deprived of said society and services.

96. As a result of the aforementioned negligence, the plaintiff, ANGELA OWENS, has expended diverse sums of money in payment of the expenses incurred for the decedent plaintiff, JAMES OWENS.

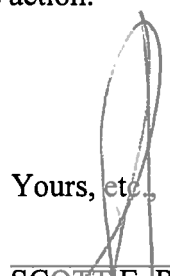
97. By reason of the foregoing, the plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, demands judgment for loss of services against the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER KURT FITZCHARLES and POLICE OFFICER PATRICK GOURLAY, in a sum exceeding the jurisdictional limits of all the lower courts.

WHEREFORE, plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, for **assault and battery** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **First Cause** of Action; plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, for **wrongful death** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Second Cause** of Action; plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, for **negligence** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Third Cause** of Action; plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, for **negligent hiring and retention** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth Cause** of Action; plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, for **civil rights violation** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth Cause** of Action; plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, for **punitive damages** demands judgment against the defendants in an amount

exceeding the jurisdictional limits of all lower Courts on the **Sixth Cause** of Action; plaintiff, ANGELA OWENS, as Administrator of the Estate of JAMES OWENS, deceased, for **loss of services**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh Cause** of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
August 3, 2018

Yours, etc.,



SCOTT E. RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 17JO01-03

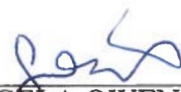
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

ANGELA OWENS, being duly sworn, deposes and says, that deponent is the Administrator of the Estate of JAMES OWENS, in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



ANGELA OWENS

Sworn to before me this 3rd
day of August 2018



NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 19